

Terms & Conditions

All orders placed with Simplytronix are subject to the terms of this Agreement, including the following Terms and Conditions of Sale or ("Conditions"). Any purported change submitted by a Customer or ("Buyer") in any additional documentation is hereby expressly rejected. Preprinted terms and conditions on any document of the Buyer (for example: Order confirmations) and/or Simplytronix's failure to object to conflicting or additional terms will not change or add to the terms of this Agreement. By acceptance of this Sales Order, Buyer hereby accepts all of the Sales Order Terms and Conditions. To the extent that any provision of this Agreement conflicts with any term or condition set forth in any prior or subsequent documentation, the provisions of this Agreement shall supersede and control. Orders placed on forms deviating from these terms and conditions may be accepted, but solely on the basis that the terms of this Agreement will prevail and such terms will be the sole terms governing the order. Any violation of these terms and conditions will result in future business being terminated.

1. Order Validation and Acceptance. Buyer is responsible for the accuracy of its order, any Buyer's specification and for supplying any relevant information within sufficient time to enable Simplytronix to deliver the products. Simplytronix specializes in Product shortages and procuring hard-to-find components. Buyer acknowledges that this Product will often NO LONGER have traceability to the original manufacturer, especially for Product with older date codes. Buyer must stipulate at the time of order if it requires a traceability paper trail going back to the original manufacturer for Product acceptance. If Buyer has not expressly stipulated a traceability requirement, buyer waives any right to return product for lack of traceability documentation and Simplytronix will reject any return request citing lack of traceability documentation. Order acceptance is expressly tied to the Terms and Conditions contained in the Sales Order, and in no event shall any of the Terms and Conditions contained in the Buyer's acceptance, whether by acknowledgement or otherwise, become part of the Sales Order.

When you place an order with Simplytronix, we may verify your method of payment, shipping address and/or tax-exempt identification number (if any) before processing your order. Your placement of an order with Simplytronix is an acceptance of the terms contained in this Agreement.

2. Product Information & Pricing. Simplytronix makes every effort to provide current and accurate information relating to Products and prices but does not guarantee the currency or accuracy of any such information. Simplytronix makes no representation as to the accuracy or completeness of the Product information, and DISCLAIMS ALL REPRESENTATIONS, WARRANTIES AND LIABILITIES UNDER ANY THEORY WITH RESPECT TO THE PRODUCT INFORMATION. Any typographical or other error or omission in any sales literature, pricing, invoice or quote is subject to correction without any liability on Simplytronix's part. Simplytronix recommends Buyer validate any product information before using or acting on such information. All product information is subject to change without notice, and Simplytronix is not responsible for typographical or other errors or omissions in product information. Simplytronix reserves the right to make changes to the specifications of any product and/or service supplied which are required to conform with any applicable statutory requirements or result from any change in manufacturer's product specification which do not materially affect quality or performance.

The market sets pricing for electronic components and other commodities. Prices and availability may be subject to change at any time prior to Simplytronix's completion of your order. Quotations, unless otherwise stated, are valid on day of issue only, and Simplytronix may change them without notice. Pricing for undelivered product may be increased in the event of any increase in Simplytronix's costs, change in market conditions or any other causes beyond Simplytronix's reasonable control. Prices are for products only and do not include taxes, shipping charges, freight, duties, and other charges or fees, such as fees for special packaging and labeling of the products, permits, certificates, customs declarations and registration. Unless otherwise stated on Simplytronix's proposal, quote or invoice, Buyer is responsible for any and all additional fees. Products are sold on an "as-is" and "as available" basis. In the event we discover a material error in the description, availability or pricing of a product in your order, we will notify you immediately with options to remedy the issue. Simplytronix reserves the right to allocate the sale of products among its Buyers.

3. Use of Product. Buyer acknowledges that Simplytronix acts solely as a distributor of electronic products and that the Buyer is exclusively responsible for detailing the specification of all products, for ascertaining the use to which they will be put, and for determining their ability to function for that purpose.

Products are not authorized for use in critical safety or other applications where a failure may reasonably be expected to result in personal injury, loss of life, or serious property damage. If Buyer uses or sells the products for use in any such applications or fails to comply with the manufacturer's product specifications, Buyer acknowledges that such use, sale, or non-compliance is at Buyer's sole risk. Buyer shall indemnify Simplytronix against any and all claims that result from or arise in connection with products supplied by Simplytronix and used in the Buyer's product or in combination with other products. Buyer will indemnify Simplytronix against all liabilities for infringement of third party intellectual property rights arising from our compliance with the Buyer's specific requirements regarding design or specification for the goods or arising from the use of the goods in combination with other products.

4. Technical Assistance or Advice. Buyer acknowledges that any technical assistance or advice offered by Simplytronix in connection with Buyer's purchases is given free of charge and as an accommodation to Buyer. Simplytronix shall not be held liable for the content or Buyer's use of such technical assistance or advice, nor shall any statement made by any of Simplytronix's representatives in connection with the products or services constitute a representation or warranty, express or implied. Simplytronix's employees or agents are not authorized to make any representations regarding any products or services unless confirmed by Simplytronix in writing and signed by an authorized manager. Buyer acknowledges that it does not rely on any such representations that are not so confirmed.

5. Terms of Payment. Payment of the total invoice amount, without offset or deduction, is due as stated on Simplytronix's invoice. For each month in which any portion of your charges are not paid by the due date on your invoice, we may charge you a late payment fee or interest on those unpaid balances equal to the maximum amount or interest rate, respectively, allowed by law. If we use a collection agency or initiate any legal action to recover amounts due, you agree to pay all such costs and expenses associated with such collection's efforts, including attorneys' fees. At any time, Simplytronix may change the terms of Buyer's credit, require financial data from Buyer for verification of Buyer's creditworthiness, require a bank guarantee or other security, or suspend any outstanding orders from the Buyer. Simplytronix may apply payments to any of the Buyer's outstanding accounts. If Buyer defaults on any payment under this Agreement, Simplytronix may reschedule or cancel any outstanding delivery and declare all outstanding invoices due and payable immediately. Unless otherwise provided by applicable law, any credit issued by Simplytronix to Buyer in respect of any of Buyer's accounts will expire if unused for twelve (12) months following the date of issuance of such credit.

Buyer agrees to settle disputes with Simplytronix in good faith. Buyer organization agrees not to chargeback payments made to Simplytronix for Product. In the event that a chargeback is placed or threatened on a purchase, Simplytronix will automatically block Buyer's customer account for future quotes or purchases.

6. Delivery. Simplytronix will make every attempt to provide for prompt delivery of purchased products in accordance with order requirements. Buyer acknowledges that delivery and/or shipment dates provided in connection with any order are estimates only and do not represent fixed or guaranteed delivery dates. Simplytronix reserves the right to make partial deliveries and Buyer will accept delivery and pay for the Products delivered. A delayed delivery of any part of an Order does not entitle Buyer to cancel other deliveries.

7. Acceptance of Product. Buyer's organization is responsible for thoroughly performing an incoming inspection of Product prior to shipment to any secondary customer site(s). Simplytronix is **not** responsible for defects found during incoming inspection at Buyer's customer's site(s). Buyer must notify Simplytronix in writing of any damage to the outer packaging or the Products, shortage, or other discrepancy ("Visual Defect") within five business days after receipt of the shipment and prior to shipment to an end customer; otherwise, Buyer is deemed to have accepted the products and may not revoke acceptance. If the Buyer fails to give such notice, the goods will be considered accepted in all respects and the Buyer must pay for them accordingly. Use of any portion of the order after delivery constitutes approval and acceptance of the order by Buyer.

8. Returns and Refunds. All return requests require review and prior written approval from Simplytronix. **A return request is not valid until Simplytronix has issued a written returned merchandise authorization (RMA) and an RMA number to the Buyer.** For approved returned merchandise authorizations, Simplytronix will accept returned products and refund Buyer's purchase price if, and only if, all of the following conditions are met:

1. Products are returned to Simplytronix within fifteen (15) calendar days of the date such products were approved for return by Simplytronix;
2. Products are returned to Simplytronix accompanied by a failure report in the English language from a credible independent testing facility certifying the problem with the products' form, fit or function; or

Simplytronix takes counterfeiting seriously and makes every effort to avoid handling counterfeit components through various verification activities. Per AS6081, a counterfeit component is a "fraudulent part that has been confirmed to be a copy, imitation, or substitute that has been represented, identified, or marked as genuine, and/or altered by a source without legal right with intent to mislead, deceive, or defraud." If Buyer is making a suspect counterfeit claim against the Product, Product must be reviewed against a golden sample and determined by an authorized authority at the manufacturer to be counterfeit. Simplytronix requires complete, unredacted documentation of this determination from the manufacturer which shall include the name, title/position, and direct contact information of the manufacturer's authorized individual making the determination for verification. Simplytronix reserves the right to contact the source for further verification, and lack of cooperation from the manufacturer's authorized individual may prejudice the Buyer's claim.

9. Warranty. Buyer acknowledges that Simplytronix is an independent distributor of electronic components and is not the manufacturer of the products. To the extent legally and contractually permitted, Simplytronix will pass through to Buyer any transferable product warranties, indemnities, and remedies provided to Simplytronix by the manufacturer. If required by law, Simplytronix warrants that at the time of delivery, products will conform to the specifications stated by the manufacturer in its published data sheet for the Products. All warranty claims for non-conformance to manufacturer's specifications are valid for up to 12 months after delivery acceptance of the products and covers normal use only. Simplytronix's pass-through limited warranties are order specific. Purchasing additional parts or products from Simplytronix does not extend this limited warranty period for previously covered components. The coverage period for used/refurbished Products may vary based on the specification sheet and/or sales invoice.

Terms & Conditions

Simplytronix DOES NOT warrant and is not responsible for:

1. DAMAGE CAUSED BY FAILURE TO PROVIDE A SUITABLE INSTALLATION OR OPERATING ENVIRONMENT FOR THE PRODUCT AND/OR ACCESSORIES;
2. DAMAGE DURING SHIPMENT
3. DAMAGE CAUSED BY IMPACT WITH OTHER OBJECTS, DROPPING, FALLS, SPILLED LIQUIDS, OR IMMERSION IN LIQUIDS;
4. DAMAGE CAUSED BY THE USE OF THE PRODUCT FOR PURPOSES OTHER THAN THOSE FOR WHICH THEY ARE CUSTOMARILY USED;
5. DAMAGE CAUSED BY A POWER SURGE OR A DISASTER SUCH AS FIRE, FLOOD, WIND, EARTHQUAKE, OR LIGHTNING;
6. DAMAGE CAUSED BY ANY OTHER ABUSE, MISUSE, MISHANDLING, OR MISAPPLICATION;
7. DAMAGE FROM IMPROPER INSTALLATION OR MAINTENANCE;
8. DAMAGE CAUSED BY PROGRAMS, DATA, VIRUSES, OR OTHER FILES OR COMPONENTS.

Simplytronix will only authorize an RMA if the defect is created solely by Simplytronix or the original manufacturer, and only if Buyer meets the notice and use requirement. Simplytronix will not grant RMAs for damage, shortage, or other discrepancy created by Buyer, the carrier or freight provider, or any other third party. Buyer's recovery from Simplytronix for any claim shall not exceed the purchase price paid by Buyer for the goods, irrespective of the nature of the claim. Buyer must return all products, freight prepaid, as detailed in the RMA..

10. Electronic Orders. If any part of the purchase and sale of products is processed using electronic means, email or third party electronic systems, these Conditions will continue to apply to the purchase and sale of the products. Buyer's acceptance of order using electronic means is binding, and buyer agrees that electronic signatures may be used and will be legally valid, effective, and enforceable.

11. Export/Import. Certain products, related technology and documentation are subject to export control laws, regulations and orders of the United States and the export or import control laws and regulations of other countries. Buyer will not directly or indirectly export or redirect any products and other related technology and documentation to any third party or country where such export or transmission is restricted or forbidden. Buyer agrees it is their sole responsibility to obtain any license to export, re-export, or import as may be required. Buyer agrees to pay any taxes, tariffs or duties, associated with the import or export of the Product in this order in full, without offset.

12. Credit Card Payments. Credit card payments will incur a 3.5% credit card processing fee.

13. Cancellation Policy: All orders are strictly **NON-CANCELABLE AND NON-RETURNABLE (NCNR)** unless goods are materially defective. No oral or written information or advice given by Simplytronix, its associates, agents or employees shall create a warranty or in any way increase the scope of any limited warranty if applicable.

14. Entire Agreement. These Conditions and the price, quantity and Product details in Simplytronix's invoice for the relevant Products/Services shall constitute the entire agreement between the parties with respect to the supply of such Products or Services; and may not be rescinded or terminated by Buyer unless provided herein. The provisions of the entire agreement supersede all prior oral and written quotations, agreements, and understandings of the parties with respect to the subject matter thereof. Simplytronix may amend these Conditions by giving notice in writing to the Buyer.

If any provision of these Conditions is held to be invalid or unenforceable by any court having competent jurisdiction, this shall be treated as severable, and it shall not affect the validity and enforceability of the remaining Conditions, which shall remain in full force and effect. The Buyer shall not assign or transfer any of Buyer's rights or obligations under the contract between Buyer and Simplytronix unless otherwise agreed by Simplytronix in writing. This Agreement can only be modified in writing and when signed by authorized representatives of both Simplytronix and the Buyer. Buyer may not assign this Agreement without the prior written consent of Simplytronix, and this Agreement is binding on all successors and assigns.

15. Governing Law and Venue: Buyer acknowledges that this Agreement was entered into at arms length and that it was not fraudulently induced to enter into this Agreement, in whole or any part, and Buyer explicitly disclaims and waives any claim with respect thereto. Any action, suit, arbitration, or other proceedings arising out of, or related to, this agreement shall be governed by the laws of the State of Texas. Buyer irrevocably consents to the jurisdiction of the state and federal courts covering the state or county in which, at the time of such action, Simplytronix maintains a place of business.

16. Arbitration. In the event of a dispute arising in any way out of this agreement, the parties agree to resolve their dispute solely through binding arbitration in accordance with the then current rules of the American Arbitration Association. This provision applies to any and all claims against any officers, directors, agents, and employees of Simplytronix. To the fullest extent permitted by applicable law, no arbitration under these Terms and Conditions will be joined to an arbitration involving any other party subject to these Terms and Conditions, whether through class arbitration proceedings or otherwise. You may opt out of this dispute resolution procedure by providing notice to Simplytronix no later than 30 calendar days from the date of purchase of the Product. To opt out, you must send notice by e-mail to compliance@Simplytronix.com, with the subject line: "Arbitration Opt Out." You must include in the opt out e-mail (a) your name and address; (b) the date on which the Product was purchased; and (c) the Product model name and part number.

17. Severability. If any portion of this Terms and Conditions of Sale is held to be illegal or unenforceable, such partial illegality or unenforceability shall not affect the enforceability of the remainder of the Terms and Conditions of Sale.
